

Tentative Rulings and Resolution Review Hearings

June 1, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

ALLEN VS. SHRANER, ET AL.

CASE NUMBER: 25CV-0206889

Tentative Ruling on Motion to Compel Responses: Defendants Michael J. Schraner and Janet Schraner move to compel Plaintiff Michael D. Allen provide responses to Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production, Set One. Despite being properly served, Plaintiff did not oppose the motion.

A party has thirty days after service to respond to a Request for Production, Form Interrogatories, or Special Interrogatories. CCP §§ 2031.260(a) and 2030.260(a). Not providing a timely response to propounded discovery results in a waiver of objections. CCP §§ 2031.300(a) and 2030.290(a). If a party to whom a discovery request is directed fails to serve a timely response, the party propounding discovery may move for an order compelling a response. CCP §§ 2031.300(b) and 2030.290(c). Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390. Despite not being required to do so, Defendants' counsel sent a letter to Plaintiff on two occasions attempting to meet and confer.

Defendants have provided evidence that Plaintiff was served by mail on January 27, 2026 with Defendants' Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production, Set One. It is now more than thirty days since Plaintiff was served and Plaintiff has not responded to any of the propounded discovery. The Court finds that there is good cause justifying the discovery sought by Defendants.

Sanctions. CCP §§ 2031.300(c) and 2030.290(c) only provide for sanctions when an unsuccessful opposition is made. However, the Court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery even when no opposition was filed. CRC 3.1348. Defendant seeks \$1,260 in monetary sanctions which is comprised of a \$60 motion fee and attorney time of four hours. Counsel requests the rate of \$300 per hour which the Court finds to be reasonable. Monetary sanctions are awarded to Defendants in the amount of \$1,260.

The motion is **GRANTED**. Plaintiff is **ORDERED** to provide verified discovery responses within twenty days of the service of the Notice of Entry of Order. Objections are waived. Defendants' request for monetary sanctions is **GRANTED** in the amount of \$1,260. Defendants did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendants are to prepare the Order.